

Tentative Rulings
August 31, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Kingsley v. Volkswagen Group of America, Inc., et al*, Case No. CIVSB2612209
Defendant Audi Ontario's Demurrer
8/31/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **OVERRULE**. Defendant will file a responsive pleading within thirty (30) days.

Case Summary

This is a lemon law case. On or about November 8, 2025, Plaintiffs leased the subject vehicle. They assert that the vehicle included express and implied warranties. However, they assert that there were defects and nonconformities to the warranty that manifested during the warranty period. They assert that they are entitled to repair, replacement, or reimbursement but that Defendant was unable to repair despite a reasonable number of attempts and have failed to replace or reimburse. As such, they filed suit on April 23, 2026, asserting causes for (1) violation of the *Song-Beverly Act* – Breach of Express Warranty (against VW) and (2) negligent repair (against Audi Ontario).

Analysis

Here, Defendant demurs to the second cause of action for negligent repair on the basis that the cause is insufficiently pleaded and, alternatively, the cause is barred by the economic loss rule.

For a claim of negligent repair, the traditional negligence elements apply: (1) legal duty; (2) breach of the legal duty; (3) causation; and (4) damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) A person who undertakes the repair of a product owes a duty to do so without negligence. (Civ. Code, § 1796.5.)

Pleading Sufficiency – The Complaint alleges Plaintiff delivered the subject vehicle to Audi Ontario for repair during the express warranty period for a warranted defect. Audi Ontario owed a duty to Plaintiff to use ordinary care and skill in storage, preparation, and repair of the vehicle. Plaintiff alleges Audi Ontario breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the vehicle in accordance with industry standards. Thus, Plaintiff asserts that Audi Ontario's negligent breach of its duties owed to Plaintiff was a proximate cause of Plaintiff's damages. (Compl. ¶¶ 29-32.)

Under these allegations, the allegations plead duty, breach, causation, and damages. Although particulars are not alleged of what damages were incurred, Plaintiff is not required to plead negligence with any particularity. (*Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, 513.) He is obligated to plead only the ultimate facts. (Code Civ. Proc., § 425.10; *Doheny Park Terrace Homeowners Assn, Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Plaintiff has done that.

Economic Loss Rule – Audi Ontario argues that Plaintiff fails to allege that he sustained any personal injuries because of Audi Ontario's alleged negligence repair, or that the subject vehicle sustained any property damage. Therefore, Audi Ontario concludes that since Plaintiff's damages are limited to economic loss, and the economic loss doctrine precludes recovery on product liability theory. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.)

Further Audi Ontario's citation to *Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1130 and that case's quotation from *Robinson Helicopter*, supra, 34 Cal.4th 979 that "[W]here a purchaser's expectations ... are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses." However, Plaintiff did not allege that he bought the Subject Vehicle from Audi Ontario. Plaintiff is also not suing Audi Ontario because of the existence of any warrantable defect in the Subject Vehicle. Additionally, the cited portions of *Food Safety Net* and *Robinson Helicopter* address whether the economic loss rule bars claims for fraud during the performance of a contract. Here, Plaintiff has not alleged either fraud or the existence of a contract between himself and Audi Ontario.

In opposing, Plaintiff argues that the economic loss rule does not bar a negligence claim where the defendant's liability is premised on the negligence performance of a service in breach of a duty imposed by law. Moreover, Plaintiff asserts that in *Robinson Helicopter*, the California Supreme Court made clear that the economic loss rule does not preclude tort claims where the defendant's conduct violates a duty independent of the parties' contractual obligations. (*Robinson Helicopter*, supra, 34 Cal.4th at pp. 988-991.)

Here, the allegations speak of no specific defects and of Audi Ontario's negligent repairs causing damages but no specifics of the damages resulting to conclude the purported negligent repair of a component did not cause damage to the vehicle as a whole to then fall outside the economic loss rule or to another part of the vehicle where it may or may not fall within the economic loss rule. Although generic, Audi Ontario offers no applicable authority that Plaintiff must specifically identify the damages suffered because of its negligence. Furthermore, "[u]nder a general allegation of damages, a plaintiff may prove and recover those damages which naturally and necessarily result from the act complained of." (*Armstrong v. Adams* (1929) 102 Cal.App.677, 682; *Armstrong v. Ford* (1939) 30 Cal.App.2d 347, 353.) Thus, here, it is not clear from the face of the pleading that the economic loss rule applies.

14. *Safai v. Albertsons Companies, Inc., et al*, Case No. CIVSB2507989
Motion for Leave to File First Amended Complaint
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT**. Plaintiff will file the First Amended Complaint (FAC) within twenty (20) days of this order.

Case Summary

This is a slip-and-fall case. Plaintiff alleges that Defendants owned, leased, maintained, controlled, managed, possessed, or otherwise operated the at-issue property. On October 24, 2023, Plaintiff alleges she was on the at-issue property when she slipped and fell on a foreign substances on the floor. The fall resulted in injury. She alleges that the condition was caused by Defendants or their employees and existed for sufficient time that Defendants should have noticed and either warned or remedied the